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UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

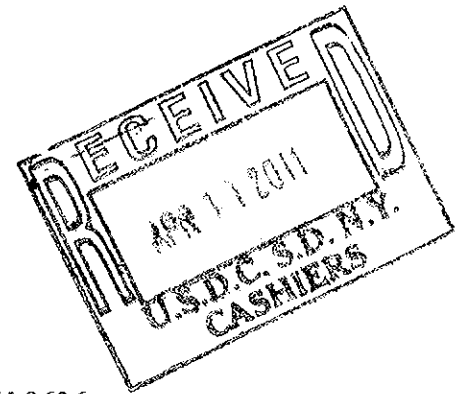
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BRIAN PENA,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, Police Officer NOEL
LAWRENCE (tax registry # 938826) and Sergeant
CHRISTOPHER JOHNSON (shield # 02453),

Defendants.
-----X



10 CV 8636

AMENDED COMPLAINT

PLAINTIFF DEMANDS
A TRIAL BY JURY

Plaintiff, **BRIAN PENA**, by his attorneys, **SCHULMAN BLITZ, LLP** complaining of
the defendant, respectfully states and alleges as follows:

NATURE OF THIS ACTION

1. Plaintiff brings this action for monetary damages (compensatory and punitive) against **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, Police Officer NOEL LAWRENCE (tax registry # 938826) and Sergeant CHRISTOPHER JOHNSON (shield # 02453)**, arising out of the false arrest, excessive force, assault, battery, filing of false reports, false imprisonment and arrest, unlawful detention, malicious prosecution, negligent and intentional infliction of emotional distress and violating the federal Constitutional rights of

plaintiff, **BRIAN PENA**.

2. It is alleged that on December 31, 2009 at approximately 8:30 AM, **Police Officer NOEL LAWRENCE** (hereinafter "**LAWRENCE**"), and **Sergeant CHRISTOPHER JOHNSON** (hereinafter "**JOHNSON**") of the **NEW YORK CITY POLICE DEPARTMENT** (hereinafter "**NYPD**"), and as agents, servants and/or employees of defendant **THE CITY OF NEW YORK** (hereinafter "**CITY**"), acting in concert and under color of law, intentionally and willfully subjected plaintiff **BRIAN PENA** to, *inter alia*, false arrest, excessive force, assault, battery, filing of false reports, false imprisonment, malicious prosecution, unlawful detention, negligent and intentional infliction of emotional distress and defendant violated the federal Constitutional rights of the plaintiff, **BRIAN PENA**.

THE PARTIES

3. At all times hereinafter mentioned, plaintiff **BRIAN PENA** was and still is a resident of the County, City and State of New York.

4. At all times hereinafter mentioned, defendant **CITY** was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

5. At all times hereinafter mentioned, defendant **NYPD** was and still is a subdivision, department and/or agency of defendant **CITY**.

6. At all times hereinafter mentioned, defendant **LAWRENCE** was an employee of defendant **CITY**, duly appointed and acting as a police officer in the **NYPD** and was an agent, servant and/or employee of defendant **CITY**, acting in the course and scope of his employment as such and in furtherance of the interests and business of said employer.

7. At all times hereinafter mentioned, defendant **JOHNSON** was an employee of defendant

CITY, duly appointed and acting as a police officer in the **NYPD** and was an agent, servant and/or employee of defendant **CITY**, acting in the course and scope of his employment as such and in furtherance of the interests and business of said employer.

8. At all times hereinafter mentioned, defendant **LAWRENCE** was acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City of New York and the State of New York.

9. At all times hereinafter mentioned, defendant **JOHNSON** was acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City of New York and the State of New York.

JURISDICTION AND VENUE

10. This action is brought pursuant to 28 U.S.C. §§ 1331, 1343 and 1367(a), 42 U.S.C. §§ 1983 and 1985, the Fourth, Fifth and Fourteenth Amendments to the constitution of the United States and under the constitution, statutes and common law of the State of New York. This court may assert supplemental jurisdiction over the state law claims as authorized by 28 U.S.C. § 1367 (a).

11. Venue is laid within the United States District Court for the Eastern District of New York and is proper in that defendant **CITY** is located, and a substantial part of the events giving rise to the claim occurred, within the boundaries of the United States District Court for the Southern District of New York.

NOTICE OF CLAIM

12. That heretofore and on or about the 3rd day of March, 2010, Plaintiff's Notice of Claim was duly served upon and filed with the defendant **CITY** and **NYPD**, within ninety (90) days after the cause of action herein accrued.

13. That prior to the commencement of this action, a statutory hearing was conducted of the plaintiff by defendant **CITY** and **NYPD** on May 6, 2010.

14. That at least thirty (30) days have elapsed since the demand or claim upon which this action is predicated was presented to the defendant **CITY** and **NYPD** for adjustment and they have neglected and/or refused to make adjustments or payment thereof.

15. That this action is not commenced more than one year and ninety days after the cause of action accrued.

STATEMENT OF FACTS

16. At all times hereinafter mentioned, defendant **CITY** operated, maintained, managed, supervised and controlled a police department, specifically defendant **NYPD**, as part of and in conjunction with its municipal functions.

17. At all times hereinafter mentioned, defendant **LAWRENCE** was an employee of defendant **CITY**.

18. At all times hereinafter mentioned, defendant **JOHNSON** was an employee of defendant **CITY**.

19. At all times hereinafter mentioned, defendant **LAWRENCE** was an employee of defendant **NYPD**.

20. At all times hereinafter mentioned, defendant **JOHNSON** was an employee of defendant **NYPD**.

21. At all times hereinafter mentioned, defendant **LAWRENCE** was personnel of defendant **CITY**.

22. At all times hereinafter mentioned, defendant **JOHNSON** was personnel of defendant **CITY**.

23. At all times hereinafter mentioned, defendant **LAWRENCE** was personnel of defendant **NYPD**.

24. At all times hereinafter mentioned, defendant **JOHNSON** was personnel of defendant **NYPD**.

25. At all times hereinafter mentioned, defendant **CITY** employed and supervised defendant **LAWRENCE**.

26. At all times hereinafter mentioned, defendant **CITY** employed and supervised defendant **JOHNSON**.

27. At all times hereinafter mentioned, defendant **NYPD** employed and supervised defendant **LAWRENCE**.

28. At all times hereinafter mentioned, defendant **NYPD** employed and supervised defendant **JOHNSON**.

29. Upon information and belief, defendant **LAWRENCE** was a graduate of the Police Academy of the City of New York.

30. Upon information and belief, defendant **JOHNSON** was a graduate of the Police Academy of the City of New York.

31. At all times relevant hereto, the defendant **CITY** had the duty to competently and sufficiently train, within the Police Academy and at the Command, Precinct and Patrol levels, defendant officer **LAWRENCE**, to conform his conduct to a standard for the protection of individuals, such as plaintiff, against the unreasonable risk of harm by conducting himself in such a

manner so as not to intentionally, wantonly and/or negligently inflict injuries to individuals such as plaintiff herein. In addition, at all times relevant hereto, the defendant **CITY** had the duty to competently and sufficiently train within the Police Academy and at the Command, Precinct and Patrol levels the defendant officer **LAWRENCE**, in the protections of the rights of plaintiff under the Constitution and the Bill of Rights.

32. At all times relevant hereto, the defendant **CITY** had the duty to competently and sufficiently train, within the Police Academy and at the Command, Precinct and Patrol levels, defendant officer **JOHNSON**, to conform his conduct to a standard for the protection of individuals, such as plaintiff, against the unreasonable risk of harm by conducting himself in such a manner so as not to intentionally, wantonly and/or negligently inflict injuries to individuals such as plaintiff herein. In addition, at all times relevant hereto, the defendant **CITY** had the duty to competently and sufficiently train within the Police Academy and at the Command, Precinct and Patrol levels the defendant officer **JOHNSON**, in the protections of the rights of plaintiff under the Constitution and the Bill of Rights.

33. At all times relevant hereto, the defendant **NYPD** had the duty to competently and sufficiently train, within the Police Academy and at the Command, Precinct and Patrol levels, the defendant officer **LAWRENCE**, to conform his conduct to a standard for the protection of individuals, such as plaintiff, against the unreasonable risk of harm by conducting himself in such a manner so as not to intentionally, wantonly and/or negligently inflict injuries to individuals such as plaintiff herein. In addition, at all times relevant hereto, the defendant **NYPD** had the duty to competently and sufficiently train within the Police Academy and at the Command, Precinct and

Patrol levels the defendant officer **LAWRENCE**, in the protections of the rights of plaintiff under the Constitution and the Bill of Rights.

34. At all times relevant hereto, the defendant **NYPD** had the duty to competently and sufficiently train, within the Police Academy and at the Command, Precinct and Patrol levels, the defendant officer **JOHNSON**, to conform his conduct to a standard for the protection of individuals, such as plaintiff, against the unreasonable risk of harm by conducting himself in such a manner so as not to intentionally, wantonly and/or negligently inflict injuries to individuals such as plaintiff herein. In addition, at all times relevant hereto, the defendant **NYPD** had the duty to competently and sufficiently train within the Police Academy and at the Command, Precinct and Patrol levels the defendant officer **JOHNSON**, in the protections of the rights of plaintiff under the Constitution and the Bill of Rights.

35. At all times hereinafter mentioned, defendant **LAWRENCE** was acting in his capacities as an employee, agent or servant of the defendant **CITY**.

36. At all times hereinafter mentioned, defendant **JOHNSON** was acting in his capacities as an employee, agent or servant of the defendant **CITY**.

37. At all times hereinafter mentioned, defendant **LAWRENCE** was acting in his capacities as an employee, agent or servant of the defendant **NYPD**.

38. At all times hereinafter mentioned, defendant **JOHNSON** was acting in his capacities as an employee, agent or servant of the defendant **NYPD**.

39. At all times hereinafter mentioned, defendant **LAWRENCE** was acting under color of law.

40. At all times hereinafter mentioned, defendant **JOHNSON** was acting under color of law.

41. At all times hereinafter mentioned, the defendants' acts constituted state action.

42. On December 31, 2009 at approximately 8:00 AM, plaintiff **BRIAN PENA** was a lawful pedestrian in the vicinity of the 59th Street/Columbus Circle subway station, in the County, City and State of New York.

43. On December 31, 2009 at approximately 8:30 AM in the 59th Street/Columbus Circle subway station, in the County, City and State of New York, plaintiff **BRIAN PENA** was stopped, detained and arrested by defendant **LAWRENCE**, an employee of defendant **CITY** and/or **NYPD**, without reasonable suspicion to stop or detain, and without just, reasonable, lawful or proper cause to arrest, the plaintiff, **BRIAN PENA**.

44. On December 31, 2009 at approximately 8:30 AM in the 59th Street/Columbus Circle subway station, in the County, City and State of New York, plaintiff **BRIAN PENA** was stopped, detained and arrested by defendant **JOHNSON**, an employee of defendant **CITY** and/or **NYPD**, without reasonable suspicion to stop or detain, and without just, reasonable, lawful or proper cause to arrest, the plaintiff, **BRIAN PENA**.

45. Upon information and belief, police officer **LAWRENCE**, an employee of defendant **CITY** and/or **NYPD**, wrongfully and improperly stopped, detained and arrested plaintiff, **BRIAN PENA**.

46. Upon information and belief, police officer **JOHNSON**, an employee of defendant **CITY** and/or **NYPD**, wrongfully and improperly stopped, detained and arrested plaintiff, **BRIAN PENA**.

47. On December 31, 2009, defendant **LAWRENCE**, an employee of defendant **CITY** and/or **NYPD**, stopped, detained and arrested plaintiff, without reasonable suspicion to stop or detain, and without just, reasonable, lawful or proper cause to arrest the plaintiff **BRIAN PENA**.

48. On December 31, 2009, defendant **JOHNSON**, an employee of defendant **CITY** and/or **NYPD**, stopped, detained and arrested plaintiff, without reasonable suspicion to stop or detain, and without just, reasonable, lawful or proper cause to arrest the plaintiff **BRIAN PENA**.

49. On December 31, 2009, defendant **LAWRENCE**, an employee of defendant **CITY** and/or **NYPD**, with deliberate disregard for proper, lawful, appropriate, correct, and effective investigative police behaviors and procedures, stopped, detained and arrested plaintiff **BRIAN PENA** when it was not right, just, lawful, proper, or necessary to do so.

50. On December 31, 2009, defendant **JOHNSON**, an employee of defendant **CITY** and/or **NYPD**, with deliberate disregard for proper, lawful, appropriate, correct, and effective investigative police behaviors and procedures, stopped, detained and arrested plaintiff **BRIAN PENA** when it was not right, just, lawful, proper, or necessary to do so.

51. On December 31, 2009, defendant **LAWRENCE**, an employee of defendant **CITY** and/or **NYPD**, assaulted, battered, beat, intimidated, threatened, menaced, attacked, pushed to the ground, thrashed, beat, shoved and pushed the plaintiff, **BRIAN PENA** , thereby causing him to sustain severe and permanent injuries.

52. On December 31, 2009, defendant **JOHNSON**, an employee of defendant **CITY** and/or **NYPD**, assaulted, battered, beat, intimidated, threatened, menaced, attacked, pushed to the ground, thrashed, beat, shoved and pushed the plaintiff, **BRIAN PENA** , thereby causing him to sustain severe and permanent injuries.

53. On December 31, 2009, defendant **LAWRENCE**, an employee of defendant **CITY** and/or **NYPD**, used excessive force and deadly physical force upon the plaintiff, **BRIAN PENA**, thereby causing him to sustain severe and permanent injuries.

54. On December 31, 2009, defendant **JOHNSON**, an employee of defendant **CITY** and/or **NYPD**, used excessive force and deadly physical force upon the plaintiff, **BRIAN PENA**, thereby causing him to sustain severe and permanent injuries.

55. On December 31, 2009, employees of defendant **CITY** and **NYPD**, including defendants **LAWRENCE** and **JOHNSON**, while acting in concert, maliciously and with intent to injure plaintiff, and without just cause or any right to do so, handcuffed, detained, jailed and restrained the plaintiff, **BRIAN PENA**, of his liberty, against the will of the plaintiff.

56. At no time did the plaintiff **BRIAN PENA** offer resistance as defendant **LAWRENCE** arrested him.

57. At no time did the plaintiff **BRIAN PENA** offer resistance as defendant **JOHNSON** arrested him.

58. The arrest of the plaintiff **BRIAN PENA** by defendant **LAWRENCE** was perpetrated without a warrant or other legal process and without probable cause.

59. The arrest of the plaintiff **BRIAN PENA** by defendant **JOHNSON** was perpetrated without a warrant or other legal process and without probable cause.

60. Plaintiff **BRIAN PENA** was falsely arrested under arrest number M09714918.

61. Plaintiff **BRIAN PENA** was detained against his will without probable cause.

62. Defendants acted maliciously and intentionally.

63. Plaintiff **BRIAN PENA** was thereupon and thereafter detained and restrained of his liberty and freedom, on account of the unlawful and wrongful acts of the defendant, and was confined in facilities of defendant **CITY** and **NYPD**, including the NYPD Transit Division District 1 station, located at the 59th Street/Columbus Circle subway station.

64. Eventually, the plaintiff, **BRIAN PENA**, was released from such confinement and detention.

65. All charges against plaintiff **BRIAN PENA**, were subsequently dismissed or otherwise disposed of.

66. The foregoing enumerated acts of the defendants were all done without probable or just cause, grounds or provocation, and were excessive, unreasonable, unnecessary and without any privilege or justification.

67. By reason of the foregoing acts by the defendants, and as a direct and proximate result of the acts of the defendants, plaintiff **BRIAN PENA** suffered violations of his constitutional rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from an unreasonable search and seizure of his person and freedom from the use of excessive, unreasonable and unjustified force, as well as violations of his civil rights under 42 U.S.C. §§ 1983 and 1985.

68. By reason of the foregoing acts by the defendants, and as a direct and proximate result of the acts of the defendants, plaintiff **BRIAN PENA** suffered severe and permanent personal injuries and damages, and upon information and belief, will continue to suffer continuous pain and other significant bodily limitations.

69. By reason of the foregoing acts by the defendants, and as a direct and proximate result of the acts of the defendants, plaintiff **BRIAN PENA** was caused severe and intense emotional anguish, humiliation, distress and embarrassment, and upon information and belief, will continue to suffer same.

70. By reason of the foregoing acts by the defendant, and as a direct and proximate result of the acts of the defendants, plaintiff **BRIAN PENA** felt grave fear and intimidation for his safety and

well being by virtue of the intentional, deliberate and malicious acts of the officers including the manner in which they assaulted, battered, attacked and falsely arrested him.

71. By reason of the foregoing acts by the defendants, and as a direct and proximate result of the acts of the defendants, plaintiff **BRIAN PENA** required medical attention and did necessarily pay and become liable for the costs thereof, and upon information and belief, will necessarily incur similar medical expenses in the future.

72. By reason of the foregoing acts by the defendants, and as a direct and proximate result of the acts of the defendants, plaintiff **BRIAN PENA** did suffer a loss of earnings, and upon information and belief, will continue to incur a loss of earnings in the future.

73. By reason of the foregoing acts by the defendants, and as a direct and proximate result of the acts of the defendants, plaintiff **BRIAN PENA** was compelled to, and did incur legal fees and did necessarily pay and become liable for the costs thereof, and upon information and belief, plaintiff **BRIAN PENA** will necessarily incur additional and similar legal fees in the future.

74. The actions of the individual defendants violated the following clearly established and well settled federal constitutional rights of plaintiff **BRIAN PENA** under the Fourth and Fourteenth Amendments to the United States Constitution, including freedom from the unreasonable search and seizure of his person and freedom from the use of excessive, unreasonable and unjustified force against a person.

FIRST CLAIM FOR RELIEF

AGAINST INDIVIDUAL DEFENDANTS

**VIOLATION OF CIVIL RIGHTS AFFORDED BY
42 U.S.C. § 1983 and 42 U.S.C. §1985**

75. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraphs

“1” through “74”, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

76. Defendant Police Officer **NOEL LAWRENCE**, with excessive and unlawful force and conduct, assaulted, battered, falsely arrested, detained and imprisoned Plaintiff in violation of his federal Constitutional rights under the fourth, eighth and fourteenth amendments of the United States Constitution and in violation of 42 USC § 1983.

77. Defendant Sergeant **CHRISTOPHER JOHNSON**, with excessive and unlawful force and conduct, assaulted, battered, falsely arrested, detained and imprisoned Plaintiff in violation of his federal Constitutional rights under the fourth, eighth and fourteenth amendments of the United States Constitution and in violation of 42 USC § 1983.

78. The defendants, acting in concert and under the color of law, have deprived plaintiff **BRIAN PENA** of civil, constitutional and statutory rights and have conspired to deprive plaintiff **BRIAN PENA** of such rights and are liable to plaintiff **BRIAN PENA** under 42 U.S.C. § 1983 and 42 U.S.C. §1985.

79. As a result of the foregoing, plaintiff **BRIAN PENA** suffered injuries including but not limited to severe and permanent personal physical injuries, severe and permanent personal emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries.

SECOND CLAIM FOR RELIEF

AGAINST INDIVIDUAL DEFENDANTS

ASSAULT

80. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraphs “1” through “79”, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

81. Upon approaching plaintiff **BRIAN PENA** and while in the process of handcuffing and arresting him, defendant **LAWRENCE**, an employee of defendant **CITY** and/or **NYPD**, while acting in concert, made plaintiff **BRIAN PENA** fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

82. Upon approaching plaintiff **BRIAN PENA** and while in the process of handcuffing and arresting him, defendant **JOHNSON**, an employee of defendant **CITY** and/or **NYPD**, while acting in concert, made plaintiff **BRIAN PENA** fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

83. Said actions were excessive, unwarranted, unnecessary and violent and violated plaintiff **BRIAN PENA**’s rights under the United States constitution and constituted an assault under New York State law.

84. As a result of the foregoing, plaintiff **BRIAN PENA** suffered injuries including but not limited to severe and permanent personal physical injuries, severe and permanent personal emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries.

THIRD CLAIM FOR RELIEF

AGAINST INDIVIDUAL DEFENDANTS

BATTERY

85. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraphs “1” through “84”, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

86. Defendant **LAWRENCE**, an employee of defendant **CITY** and/or **NYPD**, while acting in concert, assaulted, battered, beat, intimidated, threatened, menaced, chased, attacked, jumped on, pushed to the ground, thrashed, punched, shoved and pushed the plaintiff **BRIAN PENA**.

87. Defendant **JOHNSON**, an employee of defendant **CITY** and/or **NYPD**, while acting in concert, assaulted, battered, beat, intimidated, threatened, menaced, chased, attacked, jumped on, pushed to the ground, thrashed, punched, shoved and pushed the plaintiff **BRIAN PENA**.

88. That the aforesaid conduct by defendant **LAWRENCE** was without the consent of the plaintiff **BRIAN PENA**.

89. That the aforesaid conduct by defendant **JOHNSON** was without the consent of the plaintiff **BRIAN PENA**.

90. That the aforesaid conduct by defendant **LAWRENCE** was offensive in nature.

91. That the aforesaid conduct by defendant **JOHNSON** was offensive in nature.

92. That the aforesaid conduct by d defendant **LAWRENCE** was intentional.

93. That the aforesaid conduct by d defendant **JOHNSON** was intentional.

94. That the aforesaid conduct by defendant **LAWRENCE** was with the intent of causing physical, emotional and/or psychological harm and/or other injuries to the plaintiff **BRIAN PENA**.

95. That the aforesaid conduct by defendant **JOHNSON** was with the intent of causing physical, emotional and/or psychological harm and/or other injuries to the plaintiff **BRIAN PENA**.

96. Said actions were excessive, unwarranted, unnecessary and violent and violated plaintiff

BRIAN PENA's rights under the United States constitution and constituted a battery under New York State law.

97. As a result of the foregoing, plaintiff **BRIAN PENA** suffered injuries including but not limited to severe and permanent personal physical injuries, severe and permanent personal emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries.

FOURTH CLAIM FOR RELIEF

AGAINST INDIVIDUAL DEFENDANTS

FALSE ARREST and FALSE IMPRISONMENT

98. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraphs "1" through "97", inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

99. The defendants arrested, detained and imprisoned plaintiff **BRIAN PENA**, without warrant, and without reasonable, just or probable cause.

100. Defendants subjected plaintiff **BRIAN PENA** to false arrest, imprisonment, and deprivation of liberty without probable cause.

101. Said actions were excessive, unwarranted, unnecessary and violent and violated plaintiff **BRIAN PENA's** rights under the United State constitution and constituted false arrest and false imprisonment under New York State law.

102. As a result of the foregoing, plaintiff **BRIAN PENA** suffered injuries including but not limited to severe and permanent personal physical injuries, severe and permanent personal

emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries.

FIFTH CLAIM FOR RELIEF

AGAINST INDIVIDUAL DEFENDANTS

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

103. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraphs “1” through “102”, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

104. Defendants’ conduct, in assaulting, battering, violating his federal Constitutional rights, falsely arresting and imprisoning plaintiff **BRIAN PENA** was extreme, outrageous, shocking and exceeded all reasonable bounds of decency.

105. Defendants’ extreme and outrageous conduct was intended to cause and did cause severe emotional distress to plaintiff **BRIAN PENA**.

106. As a result of the foregoing, plaintiff **BRIAN PENA** suffered injuries including but not limited to severe and permanent personal physical injuries, severe and permanent personal emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries.

SIXTH CLAIM FOR RELIEF

AGAINST INDIVIDUAL DEFENDANTS

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

107. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraphs “1” through “106”, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

108. Defendants’ conduct, in assaulting, battering, violating his federal Constitutional rights, falsely arresting and imprisoning plaintiff **BRIAN PENA** was careless and negligent as to the emotional health of Plaintiff.

109. As a result of the foregoing, plaintiff **BRIAN PENA** suffered injuries including but not limited to severe and permanent personal physical injuries, severe and permanent personal emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries.

SEVENTH CLAIM FOR RELIEF

AGAINST INDIVIDUAL DEFENDANTS

COMMON LAW NEGLIGENCE

110. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraphs “1” through “109”, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

111. Defendant **LAWRENCE** was negligent in his conduct, in causing, or allowing, the aforesaid occurrence to take place.

112. Defendant **JOHNSON** was negligent in his conduct, in causing, or allowing, the aforesaid occurrence to take place.

113. Defendant **LAWRENCE**, an employee of defendant **CITY** and/or **NYPD**, while acting in

concert, negligently assaulted, battered, beat, intimidated, kicked, threatened, menaced, chased, attacked, jumped on, pushed to the ground, thrashed, beat with nightsticks, punched, shoved and pushed the plaintiff **BRIAN PENA**.

114. Defendant **JOHNSON**, an employee of defendant **CITY** and/or **NYPD**, while acting in concert, negligently assaulted, battered, beat, intimidated, kicked, threatened, menaced, chased, attacked, jumped on, pushed to the ground, thrashed, beat with nightsticks, punched, shoved and pushed the plaintiff **BRIAN PENA**.

115. As a result of the foregoing, plaintiff suffered injuries including but not limited to severe and permanent personal physical injuries, severe and permanent personal emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries.

EIGHTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY AGAINST DEFENDANT CITY AND NYPD

COMMON LAW NEGLIGENCE

116. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraphs “1” through “115”, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

117. Defendant **CITY**, was negligent in its operation, management, supervision and control of defendant **NYPD**.

118. Defendant **CITY** and **NYPD** were negligent in its hiring, training, supervising and evaluating its agents, servants and employees, including but not limited to defendants **LAWRENCE** and **JOHNSON**.

119. As a result of the foregoing, plaintiff **BRIAN PENA** suffered injuries including but not limited to severe and permanent personal physical injuries, severe and permanent personal emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries.

NINTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY AGAINST DEFENDANT CITY AND NYPD

RESPONDEAT SUPERIOR

120. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraphs “1” through “119”, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

121. Defendant **CITY** and **NYPD** are liable for the damages suffered by the plaintiff as a result of the conduct of its agents, servants and employee, under the doctrine of *respondeat superior*.

122. Defendant **CITY** and **NYPD** by their agents, servants and employee, subjected plaintiff to false arrest, assault, battery, false imprisonment, violation of his federal Constitutional rights, malicious prosecution, physical, emotional and psychological injuries, embarrassment, shame and public humiliation, loss of income, medical and legal expenses.

123. As a result of the foregoing, plaintiff **BRIAN PENA** suffered injuries including but not limited to severe and permanent personal physical injuries, severe and permanent personal emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries.

TENTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY AGAINST DEFENDANT CITY AND NYPD

**VIOLATION OF CIVIL RIGHTS AFFORDED BY
42 U.S.C. § 1983 and 42 U.S.C. §1985**

124. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraphs “1” through “123”, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

125. Defendant **CITY** and **NYPD** knew or should have known of its employees’, agents’, and/or servants’ propensity to engage in the illegal and wrongful acts detailed above.

126. Prior to December 31, 2009, defendant **CITY** and **NYPD** developed and maintained policies and/or customs exhibiting deliberate indifference and reckless disregard to the federal constitutional rights of persons in the City of New York, which policies and/or customs caused the violation of plaintiff’s rights.

127. Upon information and belief, it was the policy and/or custom of defendant **CITY** and **NYPD** to improperly and inadequately investigate citizen and other complaints of police misconduct, and acts of misconduct were instead tolerated by defendant **CITY** and **NYPD**, including, but not limited to incidents where defendant and their supervisors have in the past falsely arrested individuals without probable cause, improperly held and/or detained such individuals without probable cause, and made, and allowed other fellow police officers and others of its employee to make, false entries in official police department records, and to issue false and fraudulent criminal complaints and accusatory instruments, to cover up and hide their wrongful conduct.

128. It was the policy and/or custom of defendant **CITY** and **NYPD** to fail to take the steps to

discipline, train, supervise or otherwise correct the improper, illegal conduct of the individual defendant in this and in similar cases involving misconduct, thereby failing to adequately discourage further constitutional violations on the part of its police officers. Defendant **CITY** and **NYPD** did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.

129. As a result of the above described policies and/or customs, police officers of the **NYPD** believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

130. The above policies and/or customs demonstrated a deliberate indifference and reckless disregard on the part of policymakers of the defendant **CITY** and **NYPD** to the constitutional rights of persons within the City of New York, and were the cause of the violations of plaintiff's rights alleged herein.

131. As a result of the foregoing, plaintiff **BRIAN PENA** suffered injuries including but not limited to severe and permanent personal physical injuries, severe and permanent personal emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries.

ELEVENTH CLAIM FOR RELIEF

DELAY AND DENIAL OF MEDICAL TREATMENT AND FAILURE TO PROTECT WHILE
IN CUSTODY

VIOLATION OF CIVIL RIGHTS AFFORDED BY
42 U.S.C. § 1983

132. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraphs

“1” through “131”, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

132. By his conduct and under color of law, defendant **LAWRENCE** deprived plaintiff of his federal constitutional rights pursuant to the Fourth, Fourteenth and Eighth Amendments to the United State Constitution, to immediate medical treatment and failed to protect him once he became a prisoner, thus perpetuating and exacerbating his physical and mental pain and suffering.

133. By his conduct and under color of law, defendant **JOHNSON** deprived plaintiff of his federal constitutional rights pursuant to the Fourth, Fourteenth and Eighth Amendments to the United State Constitution, to immediate medical treatment and failed to protect him once he became a prisoner, thus perpetuating and exacerbating his physical and mental pain and suffering.

134. As a result of the foregoing, plaintiff **BRIAN PENA** suffered injuries including but not limited to severe and permanent personal physical injuries, severe and permanent personal emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries.

TWELFTH CLAIM FOR RELIEF

MALICIOUS PROSECUTION

135. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraphs “1” through “134”, inclusive, of this Complaint, with the same force and effect as though more fully set forth at length herein.

136. Defendant, acting in concert, knowingly, intentionally, and maliciously caused a false criminal accusatory instrument to be filed against plaintiff **BRIAN PENA**.

137. As a result of the foregoing, plaintiff **BRIAN PENA** suffered injuries including but not limited to severe and permanent personal physical injuries, severe and permanent personal emotional injuries, severe and permanent psychological injuries, anguish, distress, humiliation, embarrassment, lost earnings, medical expenses and legal expenses and claims damages for the aforesaid injuries.

WHEREFORE, plaintiff demands judgment against the defendant, jointly and severally, for compensatory damages on each Claim for Relief, and plaintiff demands an additional sum of punitive damages on each Claim for Relief, to be determined at the trial of this action and, in the event plaintiff is a prevailing party, attorneys' fees, interest, costs, disbursements and such other relief as to this Court shall seem just and proper.

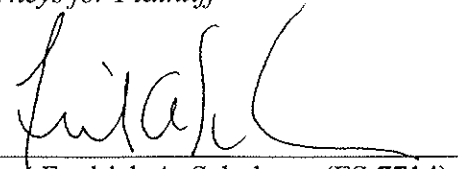
DEMAND FOR A JURY TRIAL

Plaintiff demands a trial by jury as to all issues in the above matter.

Dated: New York, New York
April 11, 2011

Yours, etc.

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